

of methodology. As such, Arteaga argues this “evidence” should be ignored. Although Arteaga did not assert properly formatted formal objections (Cal. Rules of Court, Rule 3.1350(c)), the only admissible evidence is the stipulated appraisal.

In addition, Arteaga disputes a critical additional material fact on the ground that Arteaga’s Complaint explicitly alleges he “is electing to buy out all interests of the other cotenants of the Property.” (Arteaga’s Reply Separate Statement [RSS], Issue No. 2, AMF No. 1.)

Moreover, Arteaga asserts that Aguirre has admitted certain facts according to the Court’s 5/29/26 order deeming matters admitted as against Aguirre. Specifically, Request for Admission (RFA) No. 5 states “ARTEAGA’s interest in the MARTIN STREET is as a tenant in common with a 50% interest in said real property.” (Reply, p. 4:26-28.) RFA No. 6 states “YOUR [Aguirre] interest in Martin Street is as a tenant in common with a 50% interest in said real property.” (Reply, p. 5:1-2.) RFA No. 7 states “YOU [Aguirre] are not entitled to credits, claims, offsets or reimbursements against ARTEAGA’s 50% ownership interest in MARTIN STREET.” (Reply, p. 5:3-4.) RFA No. 8 states “ARTEAGA has a statutory right to partition his interest in MARTIN STREET from YOUR claimed interest in MARTIN STREET, pursuant to CCP § 874.311.) (Reply, p. 5:5-6.) Notably, Aguirre failed to oppose the motion to deem RFAs admitted. Instead, her attorney filed a declaration asserting a break down in the attorney-client relationship.

Based on the foregoing, Arteaga has established that his Complaint states he elected to buy out his co-tenant’s interest in the subject property, which barred Aguirre from buying out Arteaga’s interest. (CCP § 874.317(a).) Arteaga also established that he and Aguirre each own a 50% interest in the title to the subject property based on the 2021 grant deed from Frank Aguirre (deceased.) Aguirre has not established otherwise, nor has she raised any triable issue of material fact as to the partition cause of action. Thus, the Court GRANTS summary adjudication of that claim.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501689	VELUPPILLAI VS CHAVEZ-GONZALEZ	MOTION TO STRIKE DEFENDANT’S CROSS-COMPLAINT

Tentative Ruling: The Court DENIES Plaintiff’s Motion to Strike.

Plaintiff’s moving papers cite CCP §436(a), which provides the court the ability to strike portions of a complaint. C.C.P. §436(a) provides that a court may “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (emphasis added.) CCP §436(a) does not, as Plaintiff seeks, give the court the ability to strike the entire CC. Although not cited, to the extent that Plaintiff intended to move pursuant to CCP §436(b) his arguments still lack merit. CCP §436(b) provides that a court may “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

Once Plaintiff named AAA as a defendant, they had the right to file a Cross-Complaint. The fact that Plaintiff then dismissed AAA as a defendant does not then eliminate the CC nor affect AAA's right to continue to pursue its CC.